Country Compliance Report:

Poland

Information class: Restricted

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Content

Introduction and document purpose

Pagero Group builds the world's largest, open business network – so you can reach any business, anywhere in the world. No matter how many borders your operations may cross or how many systems you are connected to, we take care of the technical and regulatory requirements across your entire order-to-cash, purchase-to-pay and freight processes. We give you data accuracy and security, transparency and real-time visibility – through a single connection.

At Pagero Group, we believe that technology supports sustainability. That's why we are committed to helping businesses become 100% paperless, supporting resource efficiency, transparency and business continuity.

The main purpose of this country compliance report is to provide the reader with an in-depth analysis of the focus country's laws, regulations, and process with regards to e-invoicing and other trade documents. The analysis considers topics such as business requirements before switching to electronic invoices, e-document creation, e-document distribution, integrity and authenticity, and, finally, e-archiving.

This document guides how Pagero solutions support customers in the focus country to meet local regulations and serves as a supplement to Pagero General E-invoicing Process Description.

1. Terminology

This section outlines general and country-specific terminology for Poland, which will be used throughout the whole document.

Term	Explanation
ePUAP	Is the abbreviation Elektroniczna Platforma Usług Administracji Publicznej (Electronic Platform of Public Administration Services). Taxpayers can submit their application and sign electronic documents. Each dispatch and collection of a letter by ePUAP has an official confirmation of receipt (UPO)
e-mikrofirma	A platform that micro businesses can issue and save structured invoices, create VAT records and generate JPK_VAT and JPK_FA files.
JPK	The structure of the Standard Audit File (Jednolitego Pliku Kontrolnego)
KSeF	Is the Polish National System of e-Invoices (Krajowy System e-Faktur). It enables the issuing, distribution, and storage of structured invoices
PESEL	PESEL Number [Polish acronym for "Universal Electronic System for Registration of the Population"]. It always has 11 digits, identifies just one person and cannot be changed to another one. The PESEL number is mandatory for all permanent residents of Poland and for temporary residents living in Poland for over 2 months
SLIM VAT	Is the result of an audit of regulations conducted by the Ministry of Finance, aimed at adjusting them to the operating conditions of small and medium-sized businesses. Abbreviated from 'Simple, Local and Modern VAT'
Structured Invoice (Poland)	FA_VAT, Invoices generated in KSeF with KSeF identification number

2. General overview

This section provides an initial introduction into the local eInvoicing environment within Poland, including the types of local e-invoice regulations, go-to governmental and industry bodies, and whether multiple invoicing regimes, that is, varying regulatory requirements, exist for example by industry, business size, or other defining factors.

Item	Commentary
Authorities and other agencies relevant for e-invoicing	• Ministry of Finance (MoF) • Ministry of Development • Ministry of Entrepreneurship and Technology • The Institute of Logistics and Warehousing (Ilim)
Main applicable legislation in respect of e-invoice issuance, exchange, reception and retention	• Polish VAT Act • VAT Act amendment • Tax Ordinance Act • Regulation on public procurement (*Ustawa Prawo zamówień publicznych*) • MoF announcement: Derogation obtained • VAT Act amendment (final signed)

3. E-Invoice status

When considering sending or receiving e-invoices two basic questions should be considered: is invoice equal to paper invoice from the legal perspective; and if there are any situations where e-Invoicing is mandatory for reception or transmission.

Item	Commentary
E-invoice status	• Allowed
Varying invoicing regimes[1]	• Different requirements apply to B2B and B2G e-invoices • Same regime applies to all e-invoices from July 2024
e-Invoicing model	• B2G: Centralized B2B: Post-Audit • All: Centralized exchanged via KSeF from July 2024
e-Invoice definition[2]	• A electronic invoice shall mean an invoice in electronic form issued and received in any electronic format • A structured invoice[3] shall mean an invoice issued using the National e-Invoice System (KSeF) together with an assigned number identifying that invoice in that system

Scope of taxpayers the e-document mandate applies to	• Currently public entities for receiving and processing.
	• From July 2024:
	  • **AR: all taxpayers (Domestic + Cross border**), except for[4]
	    o A taxpayer who does not establish in Poland[5]
	    o A taxable person not established in the territory of the country, who has a

[1] It is possible that a business is required to send e-invoice in some scenarios, and send voluntarily in others
[2] Differing definitions may exist between different levels of government, or differing legislation, i.e. accounting law and IT law
[3] VAT ACT amendment, starting from Jan 2022
[4] Amendment art. 106ga
[5] Establishment: have a seat of business or a fixed place of business in the territory of the country.

	fixed establishment in the territory of the country, and this fixed establishment is not involved in the supply of goods or services for which the invoice was issued ○ The taxpayer using the special schemes (Chapter XII in Chapters 7, 7a and 9)[6] ○ to the buyer of goods or services who is a natural person who does not run a business (B2C) ○ in the case of properly documented deliveries of goods or provision of services, specified in art. 106s[7] • **AP: all taxpayers (Domestic transactions)** ○ KSeF currently does not support reporting invoices from foreign suppliers. • E-invoices should be provided in an agreed format to the buyers[8], if ○ the place of performance is the territory of another Member State or the territory of a third country, or ○ the buyer is an entity without a registered office or permanent place of business in Polan, or ○ the buyer is an entity without a registered office in Poland, which has a fixed place of business in the territory of the country, and this fixed place of business is not involved in the purchase of goods or services for which an invoice has been issued
Mandatory AoR (document response) process	• By the platform i.e. KSeF as of July 2024
Implementation / roll-out plan	• Testing period: Oct. 2021-Dec. 2021 • Voluntary: Jan. 2022 - June 2024 • Mandatory: from July 2024

[6] Chapters 7: Non-Union procedure for certain services (non-EU procedure, meaning the settlement of VAT due for the provision of services to the Member State of consumption through the Member State of identification.) Chapters 7a: Special procedure for the provision of international occasional road passenger services Chapters 9: Intra-community triangular transactions - simplified procedure (1, three VAT payers identified for intra-Community transactions in three different Member States. 2, the supply is dispatched or transported by the first or second in line VAT payer)
[7] The proper minister of public finance may specify, by regulation, cases of properly documented supplies of goods or services in which the taxpayer is not obliged to issue structured invoices.
[8] Amendment art. 106gb.-4

4. Before switching to e-invoices

4.1. IT[9] registration

The following thresholds apply to the requirement to be registered for a IT number in Poland:

- Exemption for small businesses – PLN 200.000 (EUR 44.000)
  The registration threshold is not applied to the importation of goods and services. In addition, businesses in the following categories must register for VAT at the commencement of activity, regardless of the amount of turnover:
  - Businesses that supply products made from precious metals
  - Businesses that supply certain excise products
  - Businesses that supply new means of transport
  - Businesses that supply buildings or building land
  - Businesses that provide legal, consulting, and professional services
  - Businesses that supply services connected with jewellery
  - Businesses does not have a registered office in Poland
- Application of the special scheme for acquisitions by taxable persons not entitled to deduct input tax and by non-taxable legal persons – PLN 160.000 (EUR 35.000)
- Application of the special scheme for distance selling – PLN 50.000 (EUR 10.900)

Please note that the thresholds stated above are not an exhaustive list of circumstances requiring local IT registration.

In general, a foreign business must register for VAT in Poland if it makes taxable supplies of goods or services in Poland. Some exemptions apply:

- Services and goods for which the Polish purchaser is required to account for and pay tax under the reverse-charge mechanism, and
- Certain services that are subject to a zero rate.

[9] For the purpose of this document, IT refers to Indirect Tax, including, but not limited to Value-Added Tax (VAT), Goods and Sales Tax (GST), Sales tax, etc.

A non-EU business must appoint a Polish resident tax representative before registering for VAT in Poland. The tax representative is jointly and severally responsible for the tax arrears of the foreign business represented by it. An EU business is not required to appoint a tax representative to register for VAT in Poland, but it may appoint a tax representative if it chooses to do so.

Please, note that the stated above is not an exhaustive list of circumstances requiring local VAT registration.

NIP (Numer Identyfikacji Podatkowej - TAX number) format: 123-45-67-890 or PL 1234567890.

4.1.1. VAT Group

In Poland, VAT groups will become available to taxpayers from January 2023. Tax on goods and services will not be collected from entities which, despite their connection, remain legally separate.

4.1.2. White List

The White List is a web tool that contains important information about an entity conducting business in Poland. Tax administration, before VAT registration, of the entity, is entitled to verify the very existence of it, including the VAT numbers and numbers of B2B bank accounts.

Taxpayers can check whether the trading partners are active VAT payers and verify their information online.

4.2. Process to switch to e-Invoicing

Even though many countries encourage or even mandate e-Invoicing, there may be specific requirements on the Trading parties – typically the Supplier – before starting an e-Invoicing program. This section provides a brief overview of such requirements.

Item	Commentary
Actions towards authorities, required in order to enable electronic processing instead of conventional processing	• From July 2024, taxpayers have to authenticate themselves to KSeF system by o using the interface software, or o submitting a notification
Actions between the trading partners, e.g. customer acceptance, agreement, etc.	• Buyer acceptance is required • From July 2024, it is mandatory to switch to e-invoicing
Transition period from the moment of starting e-invoicing during which, e.g. parallel invoicing may be allowed	• None

4.3. Outsourcing invoice issuance function

Many companies decide to outsource the issuance process of e-invoicing to third parties who have the necessary infrastructure and knowledge of implementing and executing e-Invoicing. This may be driven by a technical limitation or local regulatory requirements. However, before doing so, it is highly recommended that a supplier investigates whether such outsourcing is permissible and whether any requirements must be fulfilled.

Item	Commentary
Whether outsourcing of invoice issuance (creation) is allowed or not	• Allowed • In the case of KSeF, see section 11.2
Whether statement of outsourced issuance is required on the invoice	• As long as the invoice is not issued by fiscal representative, there is no requirement to indicate the information relating to the issuer of the invoice
Whether outsourcing agreement is required between the taxpayer and the third-party is performing actions on its behalf	• Not explicitly required (However Pagero strongly recommends)
Content and formality requirements to the Outsourcing agreement between the taxpayer and the third-party	• No explicit requirements
Whether any notifications to or derogations from authorities are required in the specific jurisdiction for outsourced issuance	• Not explicitly required
Whether, and which, requirements exist to the outsourced party to be able to act on behalf of the taxpayer	• No explicit requirements

4.4. Outsourcing invoice receipt function

Due to the unique nature of the AP process, it may be required for the buyer (invoice receiver) to have an explicit agreement, or other permissions to be put in place for Service Providers to conduct invoice receiving functions on behalf of them.

Currently, Poland has no explicit requirements on the outsourcing of the function of receiving invoices (similar to the function to issue invoices as outlined above).

In the case of KSeF, see section 11.2.

5. Document processing

5.1. Format and other technical requirements

Globally, a multitude of e-Invoicing formats and infrastructures exist. Local regulators often offer or mandate the use of certain formats, standards, or platforms for the transmission or delivery of invoices or other tax-related documents. Pagero has the technical depth and experience to support country-specific technical requirements globally.

Item	B2B	B2G	All (July 2024)
Mandated document format(s) for exchange with mandated Gov platform(s) and/or between the trading parties	• No explicit requirements	EN compatible formats e.g. • Invoice or Credit note PEPPOL BIS 3 Other document types • eOrder1.7 • Delivery Advice 1.6 • Receipt Confirmation 1.8 • Correcting invoice 2.7 • Accounting note 2.0	• FA_VAT(2) (a structured XML format) • FA_VAT (2) was released on 23 May 2023 and will be production ready in September 2023 and fully replace FA_VAT(1)
Other document format(s) commonly used for exchange between trading parties	• PDF	• N.a.	• N.a.
Mandated platform(s) required to have connection with for e-document processing	• N.a.	• Platformy Elektronicznego Fakturowania "National eInvoicing services platform" (PEF)	• KSeF, National System of e-Invoices • In the optional version of KSeF, both Peppol and KSeF systems will operate independently. The systems are planned to be integrated in the

			obligatory version of KSeF, not earlier than after the derogation decision of the European Commission is obtained.
Other platform(s) relevant for e-document processing	• N.a.	• N.a.	• N.a.
Schematron(s), XSD schema or other official mechanisms ensuring document content	• N.a.	• N.a.	• All invoices must follow the template
Routing ID's / codes or other identifiers used in the jurisdiction for counter-party identification and document exchange	• N.a.	• N.a.	• NIP number ○ In the KSeF, all invoices of the local government unit and the VAT group will be under one NIP[10]
Other technical aspects	• N.a.	• N.a.	• Invoices will be prepared directly in the taxpayer's financial and accounting programs and sent to the KSeF via API • The size of an unencrypted invoice document may not exceed 1 MB and after encryption must not exceed 2 MB

5.2. Communication with KSeF

Regulations in Poland foresee the following options on how e-documents can be communicated with the mandatory infrastructure(s):

[10] Tax Clarifications published on 11 Oct. 2022 regarding VAT groups (GV) will be applied from January 1, 2023. It will grant rights of a limited nature to an internal unit of a local government unit or a member of the VAT group and persons representing these units. It will limit the right to view invoices to only one specific entity (internal unit of local government/entity being a member of the VAT group)

Communication options	Commentary
Automated	• API • The KSeF system only process structured invoices
Manual	• e-Mikrofirma
Other options	• N.a.

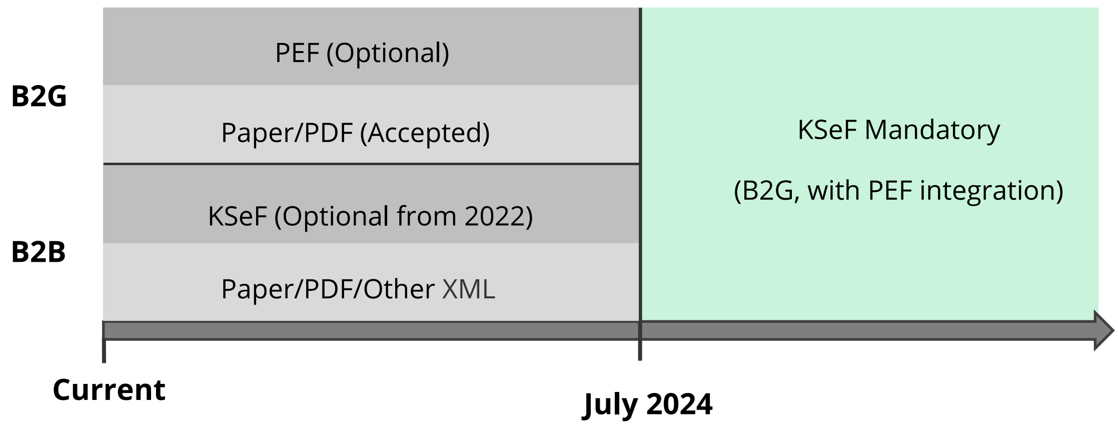
5.3. Issuance and clearance process

This section describes the document issuance and clearance process from the supplier perspective.

5.3.1. Domestic documents

This section describes the process for documents created to be transmitted within the given country.

Currently, e-invoicing is not mandatory in Poland that means VAT payers can issue invoices in an agreed format. Taxpayers are able to use KSeF to issue structured invoices from 2022 voluntarily. The issuers can send the structured invoice via KSeF or convert the cleared invoices to PDF or other electronic forms to the recipient. However, taxpayers are obliged to issue invoices electronically in KSeF from July 2024.



B2B: Post-Audit

1) Documents are exchanged with your suppliers and customers in various formats and via various exchange mechanisms, due to legal requirements and other business related preferences
2) The key requirements are to ensure the country-specific document content, document integrity and authenticity, as well as archiving requirements
3) Neither document format nor exchange mechanism are regulated

B2G: Centralized

In Poland, all public entities must be able to receive and process electronic invoices that conform with the EN.

It will be possible to utilize the existing Peppol Access points in order to exchange e-invoices and other document types with Polish governmental entities that are register as end recipients in the Peppol network.

The standard document types used in Poland/Peppol are:

- Order (Zamówienie, Peppol BIS standard, order only)
- Despatch advice (Awizo dostawy, Peppol BIS standard, despatch advice)
- Invoice (Peppol BIS v3)

Process

1) Supplier provides invoice data to the sending service provider (SSP)
2) SSP sends the final e-document to PEF/ Peppol in a PEPPOL BIS 3
3) The buyer receives the Peppol document from the mandatory infrastructure PEF as to be able to process it.

KSeF, Centralized, mandatory from July 2024

Onboarding process

1) Taxpayers have to authenticate themselves in the KSeF system.
   - Use the interface software available on the website whose address is given in the Public Information Bulletin on the website of the minister responsible for public finance or via the tax portal. or
   - on the basis of a notification submitted by the taxpayer on granting or withdrawing the rights to use the National System of e-Invoices.
2) Taxable persons or entities authorized to access the KSeF will have to be authenticated with a qualified electronic signature or trusted profile, and their authorization will need to be verified.
3) Buyer’s consent is required in the voluntary period

Invoice issuance

1) Supplier provides invoice data from its financial and accounting programs to SSP (sending service provider)
2) SSP convert the invoice to the final e-invoice to the KSeF in FA_VAT format via API
3) RSP/Buyer receives the e-invoices from the mandatory infrastructure KSeF in a FA_VAT format
   a. In the voluntary period, e-invoices can be distributed to the buyer in an agreed format

5.3.2. Cross-Border

This section describes the requirements for cross-border outbound documents such as sales invoices.

In Poland, a taxpayer who use an electronic interface to execute activities below in the territory of the European Union is obliged to keep records to these activities in electronic form. The records should be no later within 14 days from the date of delivery of good and services.

1) distance sales of imported goods the value higher than (include) EUR 150
2) intra-Community distance sales of goods or delivery of goods to a non-taxable entity other than the taxpayer who has no registered office or a permanent place of business in the territory of the European Union:
    a. intra-Community distance sales of goods or
    b. delivery of goods to a non-taxable entity
3) Detailed list in Art 109b of VAT Act

As of July 2024, taxpayers need to issue invoices in the KSeF system. However, the taxpayers can send the invoice to the foreign buyers in an agreed format.[11]

5.4. Reception and validation process

This section describes the document reception, validation and acceptance processes from the buyer perspective.

5.4.1. Domestic documents

This section describes the process for documents received for purchases or transactions within the given country

Poland has no explicit requirement on the receiver to provide to the Supplier confirmation / notification that an e-invoice has been received or accepted. Only the general acceptance to switch to e-invoicing is required.

By receiving invoices through the KSeF, recipients' consent is required. From July 2024, taxpayers are obligated to receive their invoices electronically via the KSeF; therefore, there is no requirement for the supplier to receive formal approval from the recipient to stop sending invoices via other mechanisms.

5.4.2. Cross-Border

This section describes the requirements for cross-border inbound documents such as purchase invoices.

[11] VAT Act amendment Art. 106gb.-4

In the intra-Community acquisition of goods, the tax obligation arises upon the issuance of the invoice by the VAT payer, but not later than on the 15th day of the month following the month in which the acquisition was made.

5.5. AoR (response) process

No explicit requirements in the current schema. For KSeF, please see section 5.6

5.6. KSeF validations

Some tax regimes require businesses to send tax documents to a predetermined hub before, or shortly after issuing invoices. Generally, a hub that requires this will send a reply to the issuer. This reply can be expressed as a clearance/ approval response, rejection, semi approved, etc.

- KSeF sends the following notifications to the taxpayer
  - Validation pass: the date and time of issuing a structured invoice and the number identifying the structured invoice assigned by this system and the date and time of its allocation,
  - Validation failed: the date and time of rejection of the invoice in the event of its non-compliance with the specimen,
  - The inability to issue a structured invoice (in the event of unavailability of the KSeF.)

5.7. Invoice presentation / copy

Some regimes require a visual presentation of the invoice file to be transmitted along with the structured invoice file. This section describes if there is any regulation concerning visual or image-based presentations of invoices as a copy for the original or vice versa.

To distinguish duplicate invoices from originals, the following wording must be used: DUPLIKAT (duplicate) and should state the date of issue. However, from 2022, taxpayers are released from the obligation to add ‘DUPLIKAT (duplicate)’ on a duplicate invoice.

Issuing a PDF Presentation (a human-readable duplicate) when Tax invoices are issued in machine-readable format files can be confusing. To ensure the correct management of original documents, in addition to technical controls, Pagero Online adds “Copy Tax Invoice” on PDF Presentations where Tax invoices have been issued as machine-readable format files.

5.8. Distribution between taxpayers

This section explains how and if trading parties can send invoices between each other. However, as of July 2024, taxpayers can only exchange e-invoices via KSeF.

Item	Pre July 2024	Post July 2024
Push communication	• No explicit requirements	• Prohibited
Pull communication	• No explicit requirements	• Allowed, in some cases
E-mail distribution	• Allowed	• Prohibited
Webportal[12]	• Allowed	• Allowed
Scanning inbound invoices	• Allowed	• Prohibited
Scanning outbound invoicing	• Allowed	• Prohibited
Automated exchange	• Allowed	• Allowed via KSeF

5.9. Rectification process

This section will express the process that needs to be taken when there is an error in an invoice, how it is to be handled, and corrected by both buyer, seller, and if a notification needs to be delivered to the tax authority.

Rectification process	
What are the options to correct an invoice if an incorrect IT rate, exemption or reverse charge is applied on the invoice	• Corrective invoice
What are the options to correct an invoice if the customer returns the goods	• Corrective invoice
What are the options to correct an invoice if the customer paid too much	• Corrective invoice
What are the options to correct an invoice if the supplier agrees to a discount after the invoice was issued to the customer	• Corrective invoice
What are the options to correct an invoice if the invoice misses data such as name, address, IT number, invoice reference, etc.	• Corrective invoice (supplier is the issuer) • Corrective note (buyer is the issuer), which will be removed according to the Amendment
Other scenarios with different correction option	• The Polish VAT law allows the customer to adjust certain elements of VAT invoice via correction note (a form of a correction VAT invoice). This is limited to certain invoice elements which are not correct, such as the data of the purchaser (its VAT number, address details, name inconsistencies - still it is not possible to change completely the party being the purchaser), supply date, etc. It is not possible to amend in this way data concerning the quantity, unit price,

[12] Note, however, that prior to using and external portal, like Pagero's Webportal, Suppliers are required to already have an invoice / invoice data in their internal accounting software. Portals are not designed for the purpose of replacing internal accounting but are a mechanism to make invoices available for the Buyer. Recommended only for businesses issuing fewer than 100 invoices annually.

	taxable basis, VAT due, etc. Correction note needs to comply with certain formal requirements and needs to be accepted by the supplier.
Party entitled to issue a credit note if the invoice was issued by the supplier (i.e. no self-billing)	• Supplier
Allowed to draft a 'waiting' document/interim document' in the absence of a purchase invoice and report IT as due and deductible on the basis of this document	• No

5.10. Coexistence of paper and electronic invoices

Item	Commentary
Whether parallel invoicing (issuance and exchange of the same document in several formats, e.g. electronically and on paper) is allowed and/or whether there are any regulations surrounding it	• There are no specific requirements, however, is recommended to be avoided • As of 1st July 2024, only structured invoices issued in the KSeF are fiscal invoices
Whether the jurisdiction allows for document (e.g. invoice) dematerialization, i.e. destruction of the original paper invoice, for processing and/or archiving	• Allowed
Whether any conditions apply, and which, to the dematerialisation	• Paper invoice can be discarded after scanning, provided that the eInvoice fulfils I&A requirements and is stored in accordance with archiving requirements
Whether the jurisdiction allows for document (e.g. invoice) materialization, i.e. destruction of the original electronic document, for processing and/or archiving	• Allowed
Whether any conditions apply, and which, to the materialisation	• No explicit regulations

5.11. Contingency invoicing

This refers to the process for e-invoicing if any mandatory infrastructure is inaccessible. If temporary measures are available, or allowed, to facilitate invoicing during the downtime.

The KSeF will send a notification if it is not available to issue a structured invoice, and the issuer will be obliged to re-send invoices to the system within 7 days of the end of the failure.[13]

[13] VAT Act amendment

6. Document content requirements

6.1. Document types

Item	Commentary
Documents mandatory for issuance by supplier	• Complete invoice • Simplified invoice • Corrective invoice (credit note/debit note)
Documents mandatory for issuance by buyer	• Corrective Note, which will be removed according to the amendment

Item	Commentary
Self-billing allowed	• Yes • Need to mention the word " samofakturowanie (self-billing) "
Simplified invoice allowed	• Yes • The total amount of the invoice incl. VAT does not exceed PLN 450 or EUR 100 • In addition, VAT exempt transactions, highway tolls and some tickets

6.2. Document numbering

This section outlines the requirements to the sequential numbering of invoices and, where applicable, other documents.

6.2.1. Document numbering by the taxpayer

Item	Commentary
A sequential number, based on one or more series, which uniquely identifies the invoice	• Yes
Different series of sequential numbers allowed (e.g. a separate sequential	• Yes

numbering for intercompany billings, credit notes, etc.)	
Allowed to start a new sequential numbering every year	• Yes
Worldwide numbering on legal entity level allowed provided that gaps can be explained	• No, numbering required per registration
Required that the numbers follow the date of issuance (i.e. is it true that an invoice with number 2 cannot have an invoice date older than the invoice with number 1)	• Yes

6.2.2. Additional document numbering

This section should outline any additional numbering, e.g. provided in addition by the tax authority or that must be generated by the taxpayer based on specific specifications.

BDO Number

The BDO number allows relevant authorities have the ability to control whether there are any irregularities in the field of waste management with regards to the businesses operations.

Some Taxpayers need to obtain a BDO number, which is displayed on invoices and other company documents. BDO number is an abbreviation of the Waste Database (Bazy Danych o Odpadach) registration number. Only Companies with activities related to waste must obtain the BDO registration number. This registration must be carried out before starting business activity. Entities are required to register for BDO (*All entities listed in art. 50 sec. 1 and art. 51 sec. 1 of the Waste Act.* in polish):

- introducing equipment and authorized representatives,
- introducing batteries or accumulators,
- introducing vehicles,
- producers, importers and intra-Community buyers of packaging,
- introducing packaged products into the territory of the country,
- placing tires on the territory of the country,
- introducing lubricating oils into the territory of the country

Application**:**

To obtain a BDO number, taxpayers must register in the Waste Database. Companies themselves have to submit an application for entry in the Register. The application must be submitted using the electronic registration form through the website: www.bdo.mos.gov.pl and a unique BDO registration number will be assigned.

Finally, it is also worth considering whether the trader should include the BDO number on each invoice or only on the invoices relating to the waste aspect of the business operation that the number relates. Unfortunately, this issue is not specified in the regulations. Therefore, on the side of caution, Pagero recommends to enter the BDO number on each invoice, regardless of whether it concerns waste-related activities or not.

BDO number format: (9 numbers, ranging 0-9) i.e., 123456789

KSeF identification number

An invoice issued in the KSeF will be assigned a unique identification number with the indication of the date and time, marking its approval from the KSeF system.

KSeF number consists of 35 digits:

- 10 digits - the supplier’s tax identification number
- 6 digits - invoice generated date
- 14 digits - technical number
- 2 digits – checksum
- 3 characters – dashes

KSeF numbers are required on

- Corrective invoices, if the original invoice is issued the KSeF
- Payment orders to the banks, from January 2025

Collective Identifier (Identyfikator zbiorczy)

The buyer can request a Collective Identifier from KSeF when they want to have one payment for more than two invoices. The supplier can as well use the Identifier to request KSeF to provide the invoices (KSeF numbers) under that payment.

For payments made from 1 January 2025[14], the buyer of goods or services (or the one making payments for invoices issued to that buyer) registered as an active VAT payer, making payments for structured invoices is obliged to provide the KSeF numbers or the Collective identifier in their payment orders to the bank[15].

6.3. Indirect tax (IT)[16] rates

This section illustrates the applied IT[17] rates and provides a non-exhaustive list with examples of goods and/or services that fall within specific IT rates. IT rates that differ between different administrative units are clearly outlined.

[14] Amendment Art. 17
[15] Amendment Art. 108g
[16] For the purpose of this document, IT refers to Indirect Tax, including, but not limited to Value-Added Tax (VAT), Goods and Sales Tax (GST), Sales tax, etc.
[17] Local name “Podatek od towarów i usług” or PTU

Indirect tax rates		
23%	**Standard**	All other taxable goods and services.
8%	**Reduced**	• Catering and restaurant services – with the exception of drinks (other than water, coffee, tea), unprocessed foodstuffs and some seafood • Handicraft products • Books, newspapers and magazines • Hotel services • Certain entertainment services • Passenger transport • Travel services • Medical products • Supply of water • Certain services related to agriculture • Hard discs • Certain maintenance services • Other services related to recreation – solely within the scope of admission • Supply, construction, repairs and reconstructions of buildings classified as "social housing" • supply, intra-Community acquisition and import [18] **Temporary reduction from 1 January 2023 to 31 December 2024)[19]:** • Goods used in agricultural production, for instance soil conditioners, cultivation substrates or soil improvers
5%	**Reduced**	• Certain unprocessed basic foodstuffs •Certain agricultural and forestry products • Books and certain magazines • Electronic publications
0%	**Zero**	• Exports • Intra-Community supplies of goods • Supplies of certain sailing vessels • International transport and related services • Supplies of computer equipment to educational institutions **Temporary reduction from 1 January, 2023 to 31 December 31, 2023)[20]:** • Food listed in paragraphs 1 through 18 of Annex 10 in the VAT Act
	Exempt	• Financial services (with exceptions) • Supply of real estate (with option to tax) • Health care services • Social welfare services • Public postal services • Education • Lease of residential property • Cultural and sporting events (with exceptions) • Services connected with science • Dental engineering• Betting, gaming and lotter

6.4. Mandatory IT invoice content

The section below illustrates the minimum legal requirements related to the content of invoices issued according primarily to the indirect tax regulations of Poland. Please note that other additional content requirements might apply in addition, i.a. of technical character.

General	
Required to mention the word "invoice"	• No, but recommended
Required that the invoice is issued in the language of the country who is entitled to impose the invoice requirements:	• No
Sequential numbering	• Yes, see section 6.2 above

[18] Warszawa, dnia 28 grudnia 2022 r. Poz. 2808

[19] The MoF announcement

[20] The MoF announcement

Required to mention copy or duplicate in case a copy is issued	• Yes. However, taxpayers will be waived the obligation from 2022
Reference in case of outsourced issuance	• No, as long as the invoice is not issued by fiscal representative, there is no requirement to indicate the information relating to the issuer of the invoice.

Supplier data	
Full legal name of the supplier	• Yes
Allowed to abbreviate or shorten the legal name of the supplier	• Yes, provided the full legal name is mentioned as well
Full address of the supplier in country of establishment	• Yes
Allowed to mention the PO box address instead of the legal address of the supplier	• No
IT identification number/sales tax number from the supplier in the country where the supply takes place for IT purposes	• Yes • the number by which the taxpayer is identified for the purposes of the tax
IT identification number of the supplier in the country of establishment	• No
Information (i.e. name, address, IT number) of the fiscal representative of the supplier (if appointed)	• Yes • in the case of invoices issued in the name and on behalf of the taxpayer by his tax representative – the name or first name and surname of the tax representative, his address and the number by which he is identified for the purposes of the tax
Legal form of the supplier	• Yes
Trade register number of the supplier	• No • The Polish VAT law sets minimum information which are to be revealed on the invoice and if the document contains them, the taxpayer may include also additional information (e.g. its VAT-ID number assigned in other EU countries, trade register number, etc.).
Company Registry data of the supplier (e.g. court registration, address of chamber of commerce)	• No • The Polish VAT law sets minimum information which are to be revealed on the invoice and if the document contains them, the taxpayer may include also additional information (e.g. its VAT-ID number assigned in other EU countries, trade register number, etc.).
Place of legal seat of the supplier (Headquarters)	• Yes

Other supplier data	• No

Customer data	
Full legal name of the customer	• Yes
Allowed to abbreviate or shorten the legal name of the customer	• Yes, provided the full legal name is mentioned as well.
Address of the customer in country of establishment	• Yes
Bill-to address when it is different from the registered address of the customer	• No
Allowed to address the invoice to a Post Office Box address instead of the legal address of the customer	• No
IT identification number in the country where the supply takes place for IT purposes in case of domestic supplies (if available)	• Yes • the number by which the buyer of goods or services is identified for the purposes of tax or value added tax under which he received the goods or services
IT identification number of the customer in the country of dispatch for invoices issued for exempt export supplies	• No
IT identification number of the customer in another Member than the Member State of dispatch for intra-Community supplies	• Yes
Information (i.e. name, address, IT identification number) of the fiscal representative (if customer has appointed a fiscal representative)	• No
Other customer data	• No

Transaction data	
Date of issue	• Yes • The date of issue for the structured invoice, which is "materialised" on the invoice after positive verification in the system, will be the date on which the issuer of the invoice sends the invoice to KSeF. • The date of sending will be in the UPO. This date is also included in the number assigned by the KSeF • The invoice shall be issued no later than on the 15th day of the following month after the goods are delivered or the service is performed • From 1 November 2021, in the case of air traffic control and supervision services for

	which route charges are collected, the invoice shall be issued no later than the 28th day of the following month after the service is performed[21]
	• Invoices cannot be issued earlier than the 30th day before (extends to 60th day from 2022):
	  ○ delivery of goods or performance of a service;
	  ○ receiving, prior to the delivery of goods or the performance of a service, all or part of the payment.

Date of supply (chargeable event)	• The date of the delivery or completion of the delivery of goods or the performance of the service or the date of receipt of the payment, if such date is specified and differs from the invoice issue date
Date of prepayment	• No
Description of the goods/services	• Yes • name (type) of goods or services
Quantity of the goods supplied or the extent of the services supplied	• Yes • the measure and quantity (number) of the delivered goods or the scope of the services provided
Purchase order number	• No
Shipped from location (for the supply of goods)	• No, but recommended • Especially in case of cross-border transactions
Shipped to location (for the supply of goods)	• No, but recommended • Especially in case of cross-border transactions
Status of the goods (e.g. in bond, in free circulation)	• No, but recommended • Especially in case of cross-border transactions
Incoterms	• No, but recommended • Especially in case of cross-border transactions
Other information on the supplied goods/services required (except in case of intra-Community supply of new means of transport)	• In case of supply of the goods or services VAT exempt, the taxpayer is obliged to include on the invoice information: ○ a provision of the act or an act issued on the basis of the act, on the basis of which the taxpayer applies the tax exemption,

[21] Journal of Laws of 2021, item 685

	○ a provision of Directive 2006/112 / EC which exempts such supply of goods or services from tax, or ○ any other legal basis showing that the supply of goods or services is exempt.

Financial data	
Taxable base per item (unit price excl. IT)	• Yes
Total taxable base per IT rate or exemption	• Yes
IT rate applied	• Yes
Total IT amount calculated per rate	• Yes
Total IT amount payable	• Yes
Discounts/rebates if not included in the unit price	• Yes • The amount of any price discounts or reductions, including in the form of an early payment discount, unless they have been included in the net unit price;
Total gross amount (including IT)	• Yes
Mandatory to mention the total IT amount due in the national currency	• Yes • Tax amounts expressed in a foreign currency are shown in Polish zlotys using the principles of converting into Polish zlotys adopted for converting the amounts used to determine the tax base. The amounts shown in the invoice are rounded to the nearest penny, with the endings below 0.5 groszy being omitted, and the endings from 0.5 groszy being rounded to 1 grosz.
Which other amounts (i.e. none, only the total IT amount) must be mentioned in the national currency of your country	• Only the VAT amount • The VAT amount on the invoice must be shown in Polish zloty (PLN), regardless of the currency in which the amount due is expressed in the invoice.
Exchange rate (if the invoice is not issued in the local currency)	• No, but recommended
Which exchange rate must be applied in order of priority	• If a VAT invoice is issued in a foreign currency, the output value must be converted into Polish zloty, using the official exchange rate published by the National Bank of Poland (NBP) or European Central Bank (ECB) for the last business day preceding the date on which the tax point arises.

	• If the invoice is issued before the tax point date, the output value must be converted using the official exchange rate published by NBP or ECB for the last business day preceding the invoice issuance date
	• From 1 January 2021 following SLIM VAT changes it is possible to use common exchange rates with income tax
	• From 1 November 2021, different foreign currency conversion methods for specific scenarios, i.e.:
	  ○ Invoices issued by the Central Route Charges Office (CRCO), the Euro amount, are converted into PLN at the average monthly cross-closing rate calculated by the Reuters Group.
	  ○ Invoices for admission services to mass events, the foreign currency is converted into PLN following the imported goods customs regulations.
	• From SLIM VAT 3 draft amendment, the foreign currency conversion rules to correct collective invoices would give taxpayers the option to choose between the exchange rate published on the day preceding the date the correction was issued and the original (historical) exchange rate.

Terms of payment	• No, but recommended
IBAN and BIC number of supplier	• No, but recommended

Specific references for invoices	
Invoice reference in case of IT exemption or reverse charge	• Yes
List the required references in case of exemption or reverse charge	• Reverse charge – odwrotne obciążenie • VAT exemption – reference to Polish VAT Act or EU VAT Directive or other legal basis (note that Polish VAT law differentiates between VAT exemption and 0% VAT rate with recovery right)
Allowed to refer to the appropriate provision in Directive 2006/112/EC for: - “reverse charge” for supplies subject to a reverse charge mechanism; - “ supply is taxable in the country of the recipient” for B2B supplies of services; - “exempt intra-	• Yes

Community supply – article 138 VAT Directive"; - "Exempt export – article 146 VAT Directive"; - "simplification for triangular sales – article 141 VAT Directive – " Transfer of own goods- article 17 VAT Directive"?	
Required to specifically mention 'margin scheme – travel agencies', 'margin scheme – second hands goods', if applicable	• Yes
Reference required if the transaction takes place outside the EU as a result of the Use and enjoyment provisions	• No
Specific other reference required, e.g. in case of barter transaction, prepayments, etc. (not self-billing or special margin schemes)	• No
Specific references required in case invoicing is outsourced	• No • As long as the invoice is not issued by fiscal representative, there is no requirement to indicate the information relating to the issuer of the invoice.
Reference to 'cash accounting scheme' in B2B sales in case the IT is due by the supplier upon receipt of the payment/IT is deductible by the customer upon payment	• Yes
Other specific requirements/references to be mentioned on an invoice	• Designation of the type of invoice o **VAT** – VAT invoice; o **KOR** – Corrective invoice; o **ZAL** – Advance invoice[22]; o **ROZ** aka "Faktura koncowa" – Settlement (Final) invoice[23]; o **KOR_ZAL** – Corrective advance invoice; o **KOR_ROZ** – Corrective Settlement invoice; o **UPR** – Simplified invoice; • Attributes o **TP** – The existing relationship between the buyer and the supplier goods or service provider o **FP** – Faktura do paragon (invoice for/to receipt)

[22] Polish VAT payers are obliged to issue an advance invoice when they receive all or part of the payment before the delivery of goods or services. In SLIM VAT 3, it's still a draft, taxpayers may choose to one invoice (only the final one) or two (advance and final) if the advance payment and the delivery or service are in the same month.
[23] When the advanced invoice covers only the down payment amount, the issuer needs to issue a Settlement (final) invoice for the remainder of the payment. The Settlement (final) invoice should contain information on all previously issued advance invoices.

	○ **GTU** – Grup towarów i usług (groups of goods and services) The symbols for the delivery of goods and the provision of services are represented by GTU_01 – GTU_13 • Additional data (PKWiU, CN, PKOB, EORI, Procedures, WZ, GLN, etc.)

6.5. Simplified invoice

The Supplier is not always obliged to issue a complete invoice. In certain scenarios, they may be able to issue a so-called simplified invoice[24].

Simplified invoicing	
Possible to issue simplified invoices for certain supplies	• Yes
Maximum amount for simplified invoices	• PLN 450 or the amount of EUR 100
Other supplies for which a simplified invoice can be issued	• No
Simplified invoices limited to certain type of supplies	• No
Simplified invoices not allowed for certain transactions	• Yes, simplified invoices cannot be used in the following cases: ○ A distant sale from the territory of Poland and a distant sale into the territory of Poland ○ Issuing an invoice at the request of a natural person not conducting business activity ○ An intra-Community supply of goods ○ Delivery of goods and services on the territory of a Member State other than the territory of the country and the person obliged to pay VAT is the acquirer of goods or recipient of service
Minimum content requirements on a simplified invoice	• Date of issue • Unique identification number • Supplier's VAT number • Customer's VAT number • Description/nature • Date of supply • Total amount (VAT/GST included) • Currency

[24] VAT ACT Article 106e 5(3)

Invoices subject to the national invoice requirements (not self-bills)	• Invoices issued by a non-established supplier on which IT is due by the supplier • Invoices issued by an established supplier that are taxable in another country but where IT is due by the customer • Invoices issued by an established supplier that are taxable in our country
(other) Invoices subject to the national invoice requirements (not self-bills)	• No

Pagero Online does not support the creation of simplified invoices as they typically do not correspond to the business requirements of Buyers.

6.6. Rectification document

The Credit note and Polish Corrective invoice are similar documents, having the same purpose often. However, there are some differences between them. Specifically, credit note “as is”, is not mentioned in Polish tax regulations (including Debit note).

Both corrective invoice and corrective note are kind of extensions for credit note (and based on credit note scheme), but still are different documents, characteristic for Polish law and tax Order.

Theoretically Credit/debit notes can be transmitted through Peppol to the polish platform however, it is not commonly used for internal(domestic) Polish exchange – as it is not known in Polish regulations.

For Polish suppliers, cases requiring correction of original document should be handled using “typical” corrective invoice even though Credit/debit notes are not legally forbidden they are not expected by Polish public entities and thus are likely to be rejected.

Currently, Pagero Online supports corrective documents only when the customer can provide the required contents.

6.6.1. Corrective Invoice

In Poland, corrective invoices must be issued as rectification documents. A corrective invoice should include at least the following information:

Specific references for rectification documents	
Must the word “correcting invoice” be mentioned	• Yes, ”FAKTURA KORYGUJĄCA (Correcting Invoice)” or ”KOREKTA (Correction)” • Taxpayers will be waived the obligation from 2022
Reference to original invoice required on a credit note	• Invoice number and date of issue

	• The identification number in the KSeF of the invoice to which the corrective invoice relates.
Clear indication required that the amount mentioned on the credit note is crediting earlier amount (e.g. minus sign '-')	• Yes
Reason for credit required	• Yes • Taxpayers will be waived the obligation from 2022
Others	• Taxpayers need to state the date on which the supply of goods or services has been completed or the date of receipt of the payment. Taxpayers will be waived the obligation from 2022. • A structured invoice may be corrected only in the form of a structured invoice, i.e. issued through the KSeF

Sequential numbering	
Separate sequential credit note numbering required	• Yes
Allowed to issue one credit note to correct different invoices	• Yes. The Polish Financial Supervision Authority does not provide restrictions as to the number of corrective invoices issued for one sales invoice. • Certain requirements need to be met – Credit note should include required data indicated in the Polish VAT law for all invoices which are to be corrected i.e. number of the original invoice, date of issuance, parties of the transaction, the reason for correction, etc. If the correction invoice is raised in relation to discount granted to all invoices raised to given customer in a given period, it is allowed to mention the period of discount instead of the list of corrected invoices. • From 2022, it will be allowed taxpayers both to correct invoices for individual supplies/services and to correct all supplies/services

6.6.2. Corrective Note

The buyer may issue a corrective note to correct the received invoice if the error is not related to the contents below:

- The unit and quantity (number) of the goods or the scope of the services.

- The price discounts or reductions
- Return of goods or payment (even partially)
- Accounting errors, e.g., a mistake in calculating the VAT rates, wrong net unit price, amount, sales value etc., please refer to Vat Act Art.106k for the detailed list.

A corrective note should contain the information:

- The word 'NOTA KORYGUJĄCA (corrective note)'
- Sequential number and date of issue,
- First and last name or names of the buyer and the supplier, and their addresses and tax identification number (NIP),
- Data contained in the original invoice (date of issue, invoice number, transaction parties, name and quantity of goods or services to which the invoice is issued, and delivery date if it differs from the invoice issue date.)
- Indicating the content of the corrected information and the correct content.

Please note that the KSeF does not support issuing and sending corrective notes in a structured form on a structured invoice. According to the latest Amendment from the government, corrective notes will no longer be used regardless of whether using the KSeF system.

6.7. Optional content

This section outlines briefly whether and how the trading parties can provide additional content in the technical e-document format mandated or otherwise prescribed in the specific jurisdiction. No explicit requirements in Poland.

7. Integrity and Authenticity

Ensuring the integrity of the content, as well as the authenticity of the origin (I&A) of an invoice, is an obligation for both the Supplier and the Recipient.

The purpose of this section is to further clarify the local I&A requirements on B2B invoices, as well as outline whether different requirements apply to B2G invoices. The review is done both from the Supplier's and the Recipient's perspective, as varying rules may apply.

Item	Supplier	Recipient
Whether it is mandatory to ensure I&A in the jurisdiction	• Yes	• Yes
Which methods for ensuring I&A are provisioned for	• Any means Business Controls, EDI, qualified e-signature	• Any means Business Controls, EDI or qualified e-signature Validation accepted
Which requirements apply for I&A methods if ensured by a third-party (outsourcing)	• Allowed	• Allowed
Others	• In the case of receiving structured invoices issued using KSeF, the authenticity of the origin and the integrity of their content is ensured.	

7.1. e-Signature

Even where e-signature is not an explicit requirement, Pagero recommends that our customers apply it as, globally, it is the most widely accepted legal means of ensuring I&A for business transactions.

In practical terms, this results in the same evidential position for eDocuments as for paper documents. This unique feature of e-signature provides an exceptional level of legal certainty.

Item	Commentary
e-Signature technical requirements	• Minimum advanced electronic signature
Automated e-signing	• No explicit requirements
Time-stamping of e-signature	• Not required

7.2. e-Signature validation

The Recipient of an invoice is often required by law or practice to validate the e-signature on the received invoice. Even for countries where the validation-upon-receipt is not expressly regulated, this is recommended by Pagero for both trading partners to be able to guarantee I&A.

Item	Commentary
Validation upon receipt	• No explicit requirements
Time-stamping of validation data	• No explicit requirements

7.3. Trusted Profile

Trusted Profile or Trusted signature (Podpis Zaufany) is XadES signature with the stamp of the Minister of Digitisation. It used only for contacts with administration to prove a taxpayer's identity on the Internet (PESEL). It acts as an electronic signature and is an alternative to a paid qualified signature.

With Trusted Profile taxpayers can settle most issues concerning the company (e.g., registration of the business, VAT application by CEIDG[25]), data changes, matters in the Social Insurance Institution (ZUS), registration of the fiscal cash register.

Additional, taxable persons or entities authorized to access the KSeF can be authenticated with a qualified electronic signature or Trusted Profile.

Trusted Profile is valid for 3 years. After this time, taxpayers can extend its validity for another 3 years.

[25] To start business activity as a sole trader or perform services in the form of self-employment, one should apply for entry in the Central Register and Information on Economic Activity (CEIDG).

8. Document retention

This section describes archiving requirements regarding the eInvoicing process and documents handled by Pagero. Please note, additional archiving requirements may apply to your specific documents.

Item	Commentary
Components to be stored (e.g. tax invoice, source documents, audit trail, I&A proof)	• Original invoice with signature including certificate or other evidence of integrity and authenticity as appropriate • The taxpayer will not have to store invoices issued in the KseF, which will automatically be stored in the system for 10 years
Requirements to present stored documents in a specific audit format	• Immediate access to the invoices for the tax authorities and data processing by the tax authorities • No requirements for capabilities to transform to audit format
Legibility, i.e. the ability to read stored e-documents by an untrained eye	• Required
Legibility requirements	• If the original invoice is in a machine-readable format, the taxable person must offer means to provide human readability
Retention period for invoices not related to immovable property[26]	• 5 years
Start point of retention period calculation for invoices not related to immovable property	• Starts from the end of the calendar year when the tax liability arose (for tax purposes).
Retention period for e- invoices related to immovable property	• 5 years
Start point of retention period calculation for invoices related to immovable property	• Starts from the end of the calendar year when the tax liability arose (for tax purposes).

[26] Pagero stores all documents for 90 days due to data privacy and security regulations, after which the data is automatically deleted, unless Archive has been selected. Pagero provides long term archiving (for the legally required term, plus one year)

Retention period for other than regular invoices or invoices related to immovable property (if existing):	• In the case of taxpayers settling VAT in the OSS[27] scheme (including import, non-EU, and EU schemes) are obliged to keep records and electronic communications for 10 years.
Start point of retention period calculation for other than regular invoices or invoices related to immovable property:	• Starts from the end of the year in which the transaction was made
Outsourced archiving	• Allowed
Archiving abroad[28] and conditions, if any (e.g. notification, derogation, online access, mutual tax assistance treaty	• Allowed. Provided online access
Other requirements in relation to electronic document retention	• N.a

Taxpayers who issue invoices in the KSeF will be released from the obligation of invoice storage. When the KSeF generates an identification number to the invoice, a duplicate invoice will be saved in the system automatically.

There will be no additional requirements for the KSeF users to have an invoice archive of their own. However, taxpayers can still archive with their current solutions to conduct further data analysis.

[27] One Stop Shop

[28] In certain situations or jurisdictions deviating requirements – typically regarding archiving abroad – may apply to invoices and related documents, e.g. concerning matters of defence and national security. Therefore, Pagero encourages customers to inquire for and receive an explicit written statement from the local tax authority stating that the archiving of such documents outside of the taxpayer's country is permitted. Pagero in a capacity of a third-party may not apply for derogations or clarifications of this nature on behalf of a taxpayer.

9. Other transactional documents

Along with invoices, countries may have regulations relating to other trading documents. The purpose of this section is to provide a selective (not exhaustive) overview of the regulation of other transaction-related documents of importance.

Document	Commentary
Purchase order	• PEF platform is eOrder ready, however, this is not mandatory
Rectification document	• Yes, see section 6.6 above
Payment instruction	• No explicit requirements
SAF-T (or alike) reporting	• Yes, see section 10.3 further
Transportation documents	• No explicit requirements
Other	• See section 10.4 further for Split Payment

10. Other requirements

This section highlights certain aspects of the local regulations and infrastructure that differ from Pagero's General invoice processing and our standard country compliance investigation.

10.1. Public procurement

Polish Public Procurement Office and the Ministry of Digitization implemented e-Zamówienia (electronic public procurement) platform to provide electronic services supporting the process of awarding a public contract, carried out in accordance with the Public Procurement Law.

From 1 January 2021, all public tenders will have to be submitted in electronic form. Registration on the Platform is mandatory if the Ordering Party wants to publish the procedure plan and announcements in the Public Procurement Bulletin, and submit information from the President about the offers and applications received.

The tools available on the Platform include access to information for contractors about national and EU proceedings.

10.2. Implementation of PEF

Platformy Elektronicznego Fakturowania (PEF) is the Polish governmental eInvoicing platform. It has been developed to fulfil the requirements of the Directive 2014/55/EU on electronic invoicing in public procurement. The platform is used to transmit invoices and other structured documents between public procurement contractors and contracting authorities. Large entities will be able to integrate with this platform, i.e. automatically retrieve invoices from the system.

Having an account on the PEF Platform is a statutory obligation of the ordering party. The contracting authority may not refuse to accept a structured electronic invoice issued as part of the public procurement.

Companies that will act as brokers in the project have been selected through the public procurement procedure for the *provision of services to the PEF broker*.

1. Infinite IT Solutions Sp. Z o. o. from Lublin
2. Consortium PEFEXPERT (Softiq Sp. Z o. O, Edison SA, Euvic Sp. Z o. O and MedApp SA)

PEF and KSeF

The PEF (Peppol) platform will work parallel to the KSeF during the voluntary phase and will be expected to be integrated by July 2024.

10.3. Indirect tax reports

Submit SAF-T is mandatory to all companies in Poland as of Oct 2020, including non-resident Polish VAT registered businesses. SAF-T submissions are due at the same time as the monthly or quarterly VAT returns and must be submitted by the 25th of the month following the reporting period.

Taxpayers can send the declaration via the internet using tools available on the Ministry of Finance Tax Portal – e-Deklaracje, including commercial software adapted for sending tax documents.

In order to submit the return electronically to the tax office, taxpayers must apply a qualified electronic signature on declarations. Here are the forms that are accepted by the tax authority.

After submitting the correct return, the taxpayer will be able to download the Official Receipt Certificate (UPO), which confirms that the taxpayer has correctly submitted the declaration.

A SAF-T is essentially an e-VAT register that presents all data of all concluded transactions (i.e., parties VAT numbers, amounts etc), whereas VAT returns shows the total sums of values of each kind of transactions as well as the sum of VAT to be paid, refunded or carried forward to the next month. Soon, VAT-registered taxpayers will no longer be required to file VAT returns, but submit only the new scheme of monthly SAF-T filings for VAT.

Components of the monthly/quarterly submission include:

- JPK_KR – Księgi Rachunkowe (Accounting books)
- JPK_WB – Wyciągi bankowe (Bank statements)
- JPK_MAG – Magazyn (Warehouse/Storage)
- JPK_VAT – Ewidencje zakupu i sprzedaży VAT (VAT evidence)
  - PK_V7M files (for monthly settlements) and JPK_V7K (for quarterly),
  - From July 2021, the scope of data contained has been amended
- JPK_FA – Faktury VAT (VAT invoices)
  - For invoices issued in the KseF, taxpayers are exempt from sending JPK_FA

- JPK_PKPIR – Podatkowa księga przychodów i rozchodów (Revenue and expense tax books)
- JPK_EWP – Ewidencja przychodów (Revenues registry)

Penalties

- In case of mistakes in JPK_V7 files submitted which hinder their verification
    - penalty of 500 PLN/irregularity if not adjusted within 14 days as of receipt of the summons.
- On demand SAFT files
    - Penalties based on the Polish Penal Fiscal Code and/or penalty imposed based on the Polish Tax Ordinance Act (currently up to PLN 3'300).

10.4. Split Payment Mechanism (MPP)

The split payment mechanism (mechanizmie podzielonej płatności, MPP) is to prevent VAT fraud and make the audit trail on VAT payments more transparent.

In MMP, the bank automatically splits the payment, the buyer pay the net sales value to the supplier's settlement account or settle it in another way. However, the remaining payment, which corresponds to the VAT amount from the invoice, is paid to the supplier's special bank account – the VAT account (rachunek VAT, the bank account created for VAT paid to the creditor).

The MPP applies to all entrepreneurs (B2B) in Poland, regardless of whether micro-entrepreneur, small, medium, or large companies. It is obligatory for invoices over PLN 15.000 goss, which relate to 96 sensitive goods and 54 sensitive services specified in Annex 15 to the VAT Act. However, the obligation to use the split payment only arises where the amount on the invoice is at least PLN 15,000 gross. In the case of other transactions, the MMP remains voluntary.

From July 2021, the transactions covered by the MMP have waived the obligation with marking the designation "MPP" in JPK_VAT. However, the designation is still obligatory used on the invoices.

10.5. SLIM VAT 3 Implementation

To adapt VAT regulations, the Ministry of Finance has released SLIM VAT package conducting audit and monitoring. Taxpayers, including SMEs, need to comfy with the package to their business operation.

SLIM 1 and SLIM 2 packages launched in 2021 and 2022. Now, the next edition of the package has been revealed. The changes of SLIM 3 will come into force on 1 July 2023 to simplify VAT settlements.

Changes included in SLIM3, non-exclusive list:

- The threshold for a small taxpayer will be increased from EUR 1.2 to 2 million.

- No need to print fiscal reports and non-fiscal documents from online cash registers.
- No longer a formal requirement to have an invoice for the intra-Community acquisition of goods when deducting input tax on this account.
- Simplifications related to the reporting of invoicing settlements will be introduced. This applies to e.g. adapting the conditions of issuing an invoice to the e-receipt.
- Waive the fee for the application for the issuance of Binding Rate Information (WIS)
- Increase in the threshold that allows the adoption of the proportion of 100%, if it exceeds 98% - the limit will be raised from PLN 500 to PLN 10,000.
- The conditions for faster VAT refunds for the non-cash taxpayers.
- Simplify the exchange rate on corrective invoices issued in a foreign currency.

  For instance, taxpayers may use one foreign currency exchange rate for collective in minus invoices from the day preceding the date of issuing the correction.

10.6. SENT system

The Ministry of Finance released SENT system (System for Electronic Transport Supervision) in 2017 to monitor road and railway carriage of sensitive goods and fuel trade, including intra-Community.

The sender, carrier, and recipient of the transported goods are obliged to submit and update the transport declaration to the SENT system at the moment the transport starts. Part of the update is the requirement to have a geolocation device in the means of transport used.

Sender:

When transporting sensitive goods through the territory of the Republic of Poland, the sending entity must:

- send a transport notification to the SENT system,
- receive a SENT reference number (valid for 10 days),
- obtain 3 authentication keys for each of the participants in the process - the sender, the carrier and the recipient,

provide the reference number to the carrier and (domestic transaction) the recipient of the goods.

Carrier:

The carrier then needs to provide their data, including vehicle registration number, date of commencement of transport, and the delivery date.

Recipient:

The recipient must complete the information about the receipt of the goods, no later than the next working day after the delivery.

Goods covered in the system

The list of goods covered by the SENT monitoring system includes, among others:

- motor fuel and its derivatives
- lubricating oils
- heating fuel
- dried tobacco
- alcohol
- LPG gas
- medicinal products
- foodstuffs
- medicinal devices

On 21 April 2023[29], the Minister of Finance accounted including agricultural products, including grain, eggs, poultry meat and bee products which starts outside Poland (i.e., intra-Community acquisitions and import to Poland as well as transit through Poland).

Entities participating in the transport have to report to the SENT system, including foreign transport companies and the transport between other EU Member States through the territory of Poland. Furthermore, carriers additionally have to provide geolocation data.

- Cereals, if the gross weight exceeds 500 kg
- Eggs, the number of eggs in a consignment of goods exceeds 900
- Poultry meat, if the gross weight exceeds 250 kg
- Bee products, if the gross weight exceeds 10 kg.

If failure to comply with the requirements, the sanction for the subcontractor is 46% of the gross value of the transported goods subject to obligation, not less than PLN 20,000 (EUR 45.000)

[29] Journal of Laws 2023 item 750 (Dz.U. 2023 poz. 750)

11. Introduction of KSeF

The National System of e-Invoices (KSeF) is an ICT system for issuing and receiving structured invoices, as well as for their storage. When the invoice is validated, an identification number will be assigned to each invoice, marking KSeF approval.

11.1. KSeF Implementation

In the initial period, structured invoices (FA_VAT) will be as one of the accepted forms of documenting transactions, in addition to paper invoices and other electronic invoices currently. It is requested the recipient's approval before sending structured invoices. The recipient will be able to view invoices issued in KSeF via e-Mikrofirma platform without prior authorization.

However, as of July 2024, invoices will have to be generated in the KSeF. Taxpayers are mandatory to issue and receive invoices via the national system. When the system assigns an identification number, the invoice will be deemed both issued and received.

Suppliers can only use structured corrective invoices, i.e., issued through the KSeF, to correct FA_VAT invoices. Vice versa, a corrective invoice can be issued in the KSeF only when the original (initial) invoice has been accepted by the KSeF and has a KSeF number.

The Polish Ministry of Finance has started a pilot of the KSeF and has launched the test environment in October 2021. It does not require an official application to join the pilot project. Invoices issued in the test environment will not be valid for tax purposes.

During the voluntary period, the KSeF does not apply to invoices issued by a cash register.

11.2. Authorization

Taxpayers or the one authorized by the taxpayer can use KSeF after authentication using:

- Qualified e-signature, certificate confirmed by a qualified certification centre
- Qualified e-seal, certificate confirmed by a qualified certification centre
- Trusted Signature (available through the trusted profile, see section 7.3),
- Authorization token (a sequence of 40 alphanumeric characters generated by KSeF)

Before working with the system, taxpayers may need submit an authorization notice (ZAW-FA) to use KSeF to the tax office. The authorized entity may be both the accounting office serving the taxpayer and any employee.

Taxpayer is a Natural Person, or an entity has qualified e-seal

The primary ownership entitlement is automatically assigned for taxpayers who are natural persons or not natural persons but have an e-seal containing NIP. Those VAT payers can use KSeF with a Trusted Signature or a qualified e-signature (natural persons) or a e-seal (business entity) without a notification to the authority.

Taxpayer is Non-natural person

In other cases, a taxpayer who is not a natural person must, through a notification to ZAW-FA, indicate a natural person authorized to use the KSeF on behalf of the taxpayer. This person will also be able to grant further access by electronic means under the KSeF, i.e., commercial programs via API or the web application prepared by the MoF.

Note that only the first person can be reported with ZAW-FA. Successive persons with the widest scope of rights may be reported electronically by a person authorized to grant rights.

Note that only the one person can be authorized with ZAW-FA. Other persons can only be granted rights electronically by the authorized person.

Granting, changing, or revoking the rights to use the KSeF requires the provision of:

- The taxpayer's NIP number
- Data of the person or entity to whom the right is granted, changed, or withdrawn:
    - NIP or PESEL number
    - Name of a person or entity
    - Date of birth of a natural person if NIP or PESEL is not provided
    - ID card or other documents confirming the identity of the person if NIP or PESEL is not provided
    - Unique data identifying a qualified electronic signature of an authorized natural person, if the signature does not contain the NIP and PESEL number
- Type of permission
  Information whether the entity or a natural person, which is given, changed or withdrawn permission, is a tax representative.

11.3. Access a structured invoice

A taxpayer can access a structured invoice by providing the information below:

- Identification number provided by the KSeF system
- The invoice number
- NIP number or other identifier of the buyer
- The first name and the last name of the buyer

- Total amount due

11.4. Benefits of using KSeF during the voluntary period

Taxpayers who issue invoices in KSeF will be released from the obligation of invoice storage. Once invoices have received a KSeF identification number from the system, a duplicate of the issued invoice will automatically be stored in the system. However, taxpayers can still archive with their current solutions, i.e., service providers, to keep their e-document in one place and conduct business analysis.

Taxpayers choosing an FA_VAT will receive a VAT refund by 1/3 faster. The refund period will be shortened by 20 days, i.e., from 60 days to 40 days.

Moreover, taxpayers will not have to send the Standard Audit File for Invoices (JPK_FA), as this data in its entirety will be available to tax authorities in the KSeF.

11.5. Penalties

From 1 January 2025, VAT payers who do not meet the regulations of issuing structured invoices will face non-compliance penalties of

- up to 100% of the amount of tax shown on the invoice
- up to 18.7% of the total amount due shown on the invoice, in the case of an invoice without tax.

The fines shall be paid within 14 days of the date of delivery of the decision imposing the penalty.

11.6. Latest update from the amendment

On 1 December, the Polish Ministry of Finance announced a public consultation on the draft VAT amendment regarding the KSeF e-invoicing obligation. On 2 February, the Polish government proposed to defer the obligation to July 2024.

A new version of the draft amendment was announced on 15 March 2023. It covers the proposal and takes into account comments from the public consultation, which was adopted by the Sejm (Parliament) on June 16, 2023 and signed by the President on 4 August 2023.

The main changes from the amendment:

- Timelines:
    - Postponement of the mandate to 1 July 2024;
    - Extension for the KSeF obligation of VAT-exempt businesses to January 2025;
    - Invoices from cash registers can keep the current form until 31 December 2024;

  - A fiscal receipt with a NIP number will be considered a simplified invoice until 31 December 2024;
  - Penalties will enter into force from 1 January 2025.
- Out of the KSeF scope:
  - B2C invoices;
  - Tickets, including receipts on toll motorways;
  - Invoices issued under the OSS and IOSS.
- The currency exchange rate can be determined on the day preceding the date indicated in field P_1
- Able to issue invoices offline and deliver them to the KSeF on the next working day in case of a failure to submit the invoice to the KSeF
- Possible to issue corrective invoices offline in the period of failure
- Elimination of Corrective Notes
- Withdraw Corrective Invoice Proposals

The QR code requirement remains. A QR is required on an invoice presentation, i.e., paper or PDF, for the recipients to verify the invoice. It also requires taxpayers to issue corrective invoices in KSeF when the mandate kicks off regardless of whether the original ones were issued in KSeF.

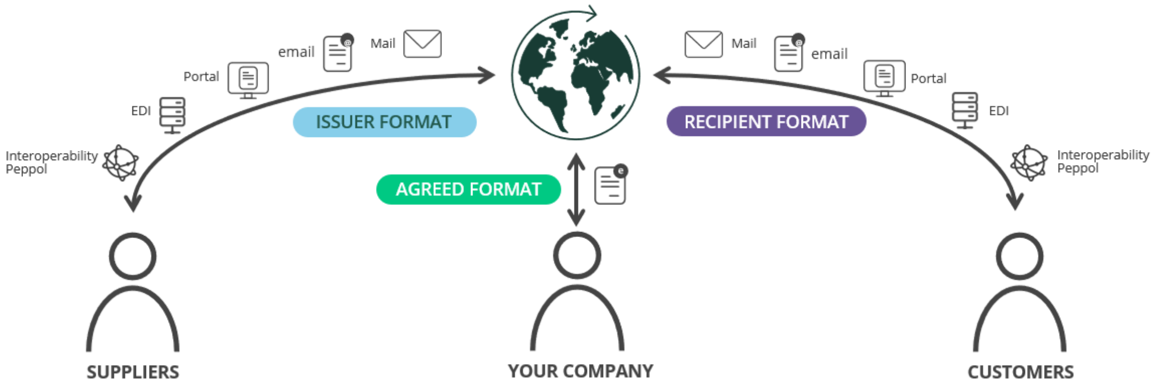
In addition, a KSeF number may be requested and indicated on a payment order. To aciculate the process, buyers can apply for a Collective Identifier (See section 6.2.2) for multiple e-invoices (different KSeF numbers) to process in one payment.

12. Country-specific processing

This section outlines how the Pagero General eInvoicing process has been adapted to the local requirements to ensure compliant local processing.

12.1. Document issuance (AR) with Pagero

B2B current flowchart

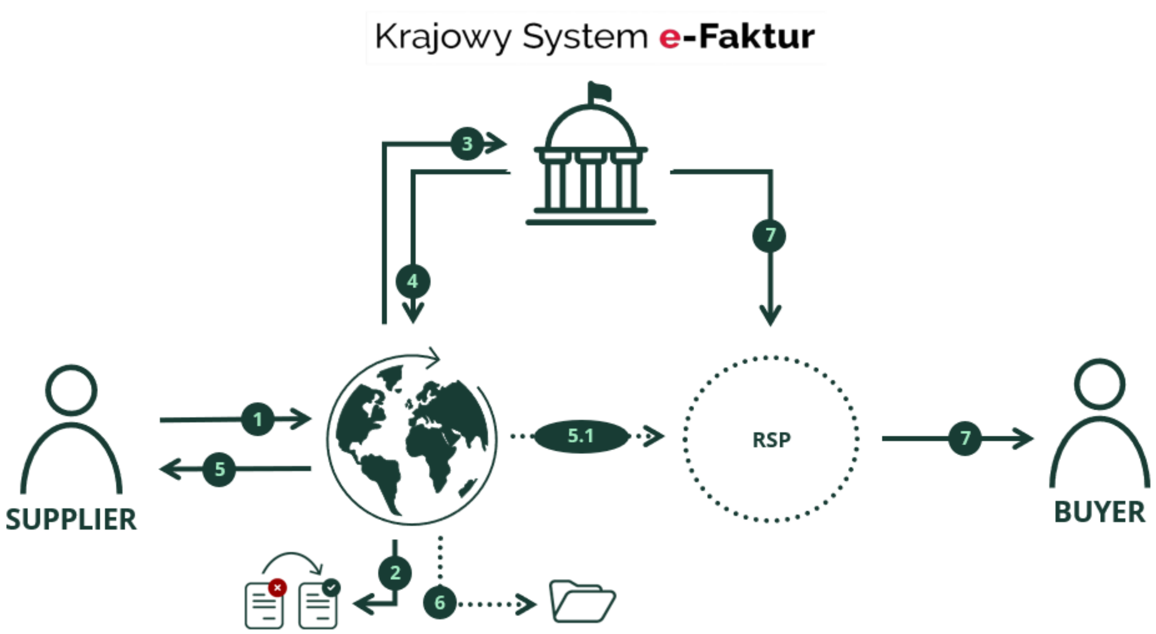


1) PAGERO ensures that documents can be exchanged with your company and your suppliers and customers, from your company perspective in a single format to ensure 100% digital AR processing, while on the other hand in the preferred format and exchange mechanism with your trading partners
2) PAGERO ensures the country-specific document content, document integrity and authenticity, as well as archiving requirements
3) PAGERO supports unlimited number of document formats and multiple exchange mechanisms
4) PAGERO supports such exchange channels as: Interoperability, Peppol, EDI, portal, e-mail, capturing / scanning, etc.

B2G current flowchart

1) Supplier provides data in supplier preferred format to PAGERO
2) PAGERO performs i.a.
    a. content validation,
    b. content enrichment and conversion,
    c. document format conversion, etc.
3) PAGERO returns the finalized e-invoice to the supplier
4) PAGERO sends the final e-document to PEF in Peppol BIS 3.0 format
5) PEF sends the received e-document to the contracting authority
6) PAGERO archives all relevant document on behalf of the supplier

From July 2024 for B2B and B2G



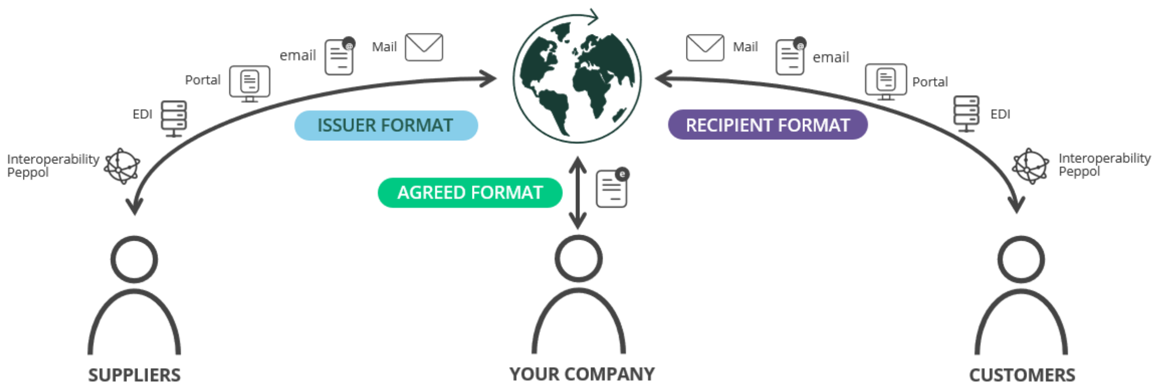
1) Supplier provides data in supplier preferred format to the sending service provider (SSP)
2) PAGERO performs i.a.
    a. content enrichment,

b. format conversion,
c. content validation,

3) Pagero sends the e-invoice to the KSeF in the mandatory format (FA_VAT) via API
4) Pagero receives the Reponse (with KSeF identification number and generation date), or Notice of rejection from KSeF
5) Pagero returns the Reponse (with KSeF identification number and generation date) or Notice of rejection to the supplier in agreed format
    5.1) If agreed between the supplier and the buyer, Pagero can support them with AR/AP automation services outside of KSeF, e.g. provide the invoice in other format, with extended content and/or with attachments
6) Pagero archives all relevant documents for the supplier according to the Polish requirements (optional)
7) RSP/buyer fetches e-invoice from KSeF in FA_VAT format

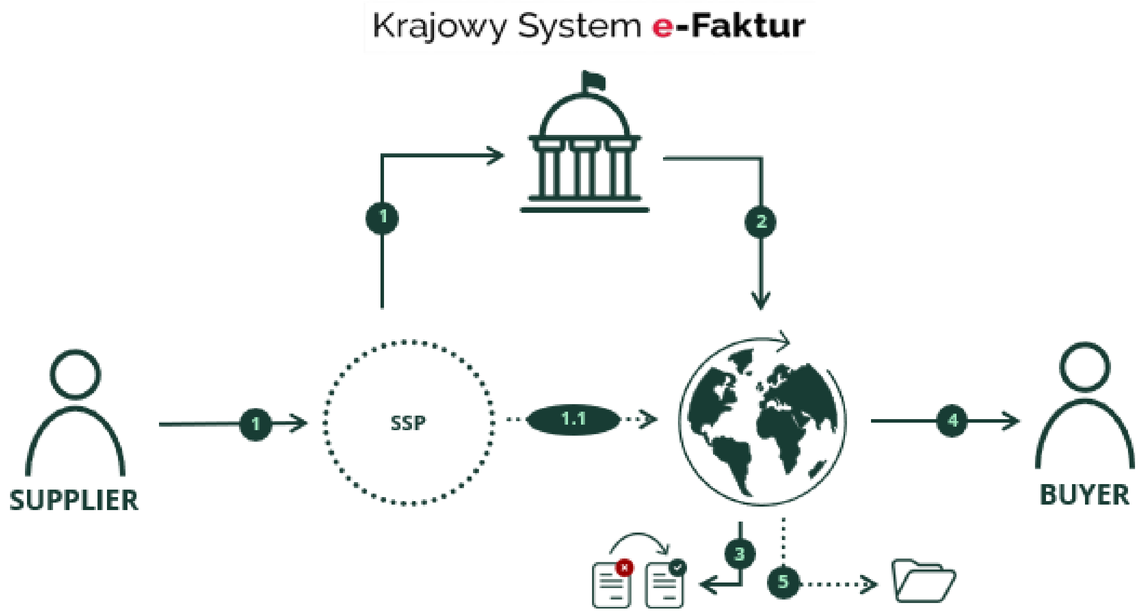
12.2. Document reception (AP) with Pagero

B2B current flowchart



1) PAGERO ensures that documents can be exchanged with your company and your suppliers and customers, from your company perspective in a single format to ensure 100% digital AP processing, while on the other hand in the preferred format and exchange mechanism with your trading partners
2) PAGERO ensures the country-specific document content, document integrity and authenticity, as well as archiving requirements
3) PAGERO supports unlimited number of document formats and multiple exchange mechanisms
4) PAGERO supports such exchange channels as: Interoperability, Peppol, EDI, portal, e-mail, capturing / scanning, etc.

From July 2024



1) Supplier provides data in supplier preferred format to the sending service provider SSP/supplier
    1.1) If agreed between the supplier and the buyer, Pagero can support them with AR/AP automation services outside of KSeF, e.g. receive the invoice in other format, with extended content and/or with attachments
2) Pagero fetches the cleared e-document from KSeF in a mandatory format (FA_VAT) via API
3) Pagero performs i.a.
    1) data validation,
    2) data enrichment and conversion,
    3) format conversion, etc.
4) Pagero sends the cleared e-invoice in FA_VAT and/or agreed format to the buyer with other relevant artefacts
5) Pagero archives all relevant documents for the buyer according to the Polish requirements (optional)

13. Pagero recommended content:

Recommended Content Poland

Value name	M/O/C	Description	Comments
Invoice level			Note that this format guide is applicable when Invoicing (and reporting) in Poland via platform KSeF (format FA_VAT). It should be noted that Invoices and Correction invoices can be sent in Poland. An invoice can be corrected multiple times. Also note that this guide deals with basic invoice (VAT) and basic corrections (KOR). It won't take into account every single reporting or einvoicing scenario. There should always be extensive testing taking place to make sure the required business cases are supported.
Invoice number	mandatory	invoice number	
Invoice date	mandatory	invoice date, indicated by the supplier	
Payment due date	conditional	The date when the payment is due	
issuetime	mandatory	issue time	
Currency code	mandatory	Invoice currency	
Simplified indicator	conditional	indication if invoice is simplified	If no indication of document being simplified it is assumed it is beeing a normal document
Cash or not cash payment	conditional	In the case of the supply of goods or the provision of services, for which the tax obligation arises in accordance with art. 19a paragraph. 5 paragraph 1 or article. 21 paragraph 1 of the Act - the words "cash method"	If payment means is CASH we set this value. If other payment means or if no payment means it is assumed that the invoice is not cash method
Selfbilling indicator	conditional	In the case of the invoices referred to in Art. 106d paragraph. 1 of the Act - the word "self-billing"	Selfbilling is not currently supported by Pagero.
Reverse charge indicator	conditional	Reverse charge indicator. In the case of the delivery of goods or the performance of a service for which the buyer of the goods or services is obliged to settle value added tax or a tax of a similar nature - the words "reverse charge"	If tax category is reverse charge Pagero will interpret as reverse charge. Otherwise it is assumed document is not reverse charge
Split payment indicator	conditional	For invoices where the total amount due exceeds the amount due PLN 15,000 or its equivalent expressed in a foreign currency, including a supply of goods or services for the taxpayer referred to in Annex 15 to the Act - the words "mechanism split payment ", with the conversion of amounts expressed in foreign currencies into zlotys, the principles of conversion of amounts used to determine the tax base should be indicated	If split payment is indicated Pagero will interpret as split payment. Otherwise (if not indicated) it is assumed document is indicated as not being split payment.
Margin indicator	conditional	In the event of the margin procedures referred to in Art. 119 or 120 of the Act, this must be indicated	If tax margin is indicated Pagero will interpret as tax margin. Otherwise (if not indicated) it is assumed document is indicated as not being tax margin.
Invoice type	mandatory	Invoice Type	Possible types: **VAT** - Basic invoice **KOR** - Correction invoice **ZAL** - Invoice documenting receipt of payment or advance payment **ROZ** - Settlement invoice **UPR** - Simplified invoice **KOR_ZAL** - Correction of a ZAL invoice **KOR _ROZ** - Correction of a ROZ invoice. **Note that this content guide does not deal with other types than VAT and KOR. If the need for other types a format analysis is needed.**
If Correction			
Reason for correction	optional	Reason for correction	Used in case of a correction invoice
Date of issue of the invoice to which the corrective invoice relates	conditional	Date of issue of the invoice to which the corrective invoice relates	Used in case of a correction invoice
Corrected invoice number	conditional	Invoice number of the invoice beeing corrected	Used in case of a correction invoice
KSeF reference number to invoice being corrected	conditional	Number identifying the corrected invoice in the National System of e-Invoices (KSeF)	Used in case of a correction invoice
Seller/Supplier information			
Name	mandatory	Legal/registred name of the supplier company	
Vat Number	mandatory	Vat number of the supplier	

Value name	M/O/C	Description	Comments
Address information			Note that these are the requirement for the polish address. If foreign address the requirements are slightly different. Country code and city is mandatory in case of foreign address
Countrycode	mandatory	Country code	
Province	optional	Voivodeship (Wojewodztwo)	
District	optional	District (Powiat)	
Street	optional	Street	
Building number	mandatory	Building number	
Apartment number	optional	Apartment number	
City	mandatory	City/town	
Post code	mandatory	post code	
GLN	optional	GLN	
Bankaccount information	**optional**		
Accountnumber	conditional	IBAN or bank account to which to make payment	
Swift/BIC	conditional	If IBAN you need to provide this	
type of account	conditional	Type of bankaccount (ex IBAN, BANK)	
Buyer/Recipient information			
Name	mandatory	Legal/registred name of the buyer company	
Vat Number	Conditional	Vat number of the buyer	
Address information			Note that these are the requirement for the polish address. If foreign address the requirements are slightly different. Country code and city is mandatory in case of foreign address
Countrycode	mandatory	Country code	
Province	optional	Voivodeship (Wojewodztwo)	
District	optional	District (Powiat)	
Street	optional	Street	
Building number	mandatory	Building number	
Apartment number	optional	Apartment number	
City	mandatory	City/town	
Post code	mandatory	Post code	
GLN	optional	GLN	
Buyer email	optional	Email address	
Buyer telephone number	optional	Telephone number	
Customer number	optional	customer number	
VAT specification for each VAT rate			
Taxable amount	mandatory	Taxable amount	
VAT rate	mandatory	Tax rate	
VAT amount	mandatory	Tax amount	
Tax exemtion reason	conditional	Reason for exempt from vat expressed as freetext	
Tax category	conditional	VAT category code	
Invoice totals			
Total VAT amount of the invoice	mandatory	Total VAT amount of the invoice	
Total net amount of all line items	conditional	Total net amount of all line items (without VAT)	
Total amount of all line items	conditional	Total net amount of all line items (withVAT)	
Total amount of invoice including VAT (Amount to Pay)	mandatory	Total amount of invoice including VAT (Amount to Pay)	

Line item level

Article description	mandatory	Article name/description	
Delivery date	optional	Delivery date	
Unit of measurement	mandatory	Unit (UOM)	
Quantity	mandatory	Quantity invoiced	
Unit price	mandatory	Article unit price	
net amount for line	mandatory	Value of the goods delivered or services performed, covered by the transaction, without the tax amount (net sales value)	
Total amount for the line	optional	total amount for the line	
Tax rate	mandatory	tax rate	Possible values: 23, 22, 8, 7, 5, 4, 3, 0

Value name	M/O/C	Description	Comments
Tax category	conditional	VAT category	zw: exempt from taxation oo: reverse charge np: non-taxable - transactions of supply of goods and provision of services outside the territory of the country

14. Closing statements

14.1. Confidentiality

This General invoice processing description of Pagero Online, our Country Compliance Reports, and other documents provided by Pagero are of confidential nature and are only intended for and may only be used by Pagero's Customers, their employees or other authorized recipients for the purpose or purposes specified and agreed to between the parties. Descriptions, reports, and documentation may not – neither in full nor in parts – be copied or otherwise distributed to third parties without Pagero's prior written consent.

14.2. Disclaimer

In order to establish a relationship based on trust and transparency with our Customers, Pagero provides its General e-Invoice and eArchiving processing descriptions of Pagero Online as well as Pagero's Country Compliance Reports. These documents are intended to enable our Customers and their tax advisors to assess how Pagero has interpreted the relevant legislation and implemented it in our processes in order to support our Customers to fulfil their legal obligations.

We would like to remind our Customers that, according to tax and accounting regulations, the outsourcing of any process to third parties (such as issuance, compiling, processing, receipt, or archiving of e-Invoices), will not lead to a shift of liability, the liability will remain with the Customer. Accordingly, the taxable person always remains responsible towards the local authorities for ensuring their e-Invoice compliance, and for fulfilling accounting and reporting requirements. We want to emphasise this, in the light of that there can be potentially conflicting regulations on regional, national, or international levels.

Pagero endeavours to only include and provide accurate and up to date information. However, Pagero makes no guarantees as to the accuracy of any statement, information or advice provided by Pagero, whether in writing or verbally. The Customer must make an informed decision about whether to adhere to and follow such recommendations or not. The final decision and responsibility regarding tax, accounting, and reporting issues rest with the Customer.

Revision history

Date	What has changed
06 December 2017	• Document created
13 August 2019	• Periodic update
14 April 2020	• Periodic update
17 November 2021	• Added section 6.6.2 corrective note and section 11 KSeF introduction • Added information for VAT amendment • Updated section 10
31 January 2022	• Added section 9- Access a structured invoice • Updated section 11.2 and added appendix 1 • Updated section 12
29 March 2022	• Updated section 12 flowcharts
13 April 2022	• Added Pagero recommended content
21 June 2022	• Updated the KSeF obligation date
6 September 2022	• Updated section 5.1 and section 8
10 November 2022	• Updated section 4.1 VAT group • Added section 10.5 Penalties
12 January 2023	• Updated invoice version: FA_VAT (2) • Updated section 6 (SLIM VAT 3 draft/temporary VAT rates) • Added section 11.5 Latest update from the draft amendment
3 February 2023	• Updated mandate new timelines • Updated 11.5 based on the MoF announcement
29 March 2023	• Updated section 6.2.2 and 6.3 • Updated section 11.5 based on the new draft amendment • Updated ZAW-FA form
30 June 2023	• Added sections 4.1.2, 10.5 and 10.6 • Updated section 11
14 August 2023	• Section 10.1: Penalties • Section 10.2: E-reporting
28 August 2023	• Added Mandate scope, Collective Identifier • Updated section 11

Appendix 1

Notification (Zawiadomienie) of granting or receiving rights to use KSeF (version 2, applies to forms submitted from January 1, 2023)

POLA JASNE WYPEŁNIA PODMIOT SKŁADAJĄCY ZAWIADOMIENIE, POLA CIEMNE WYPEŁNIA URZĄD. WYPEŁNIĆ DUŻYMI, DRUKOWANYMI LITERAMI, CZARNYM LUB NIEBIESKIM KOLOREM

1. Identyfikator podatkowy NIP podatnika lub podmiotu	2. Nr dokumentu	3. Status

ZAW-FA

ZAWIADOMIENIE O NADANIU LUB ODEBRANIU UPRAWNIEŃ DO KORZYSTANIA Z KRAJOWEGO SYSTEMU E-FAKTUR

4. Kolejny nr egz. / ogółem liczba egzemplarzy[1)]

Podstawa prawna:	§ 4 ust. 1 rozporządzenia Ministra Finansów z dnia 27 grudnia 2021 r. w sprawie korzystania z Krajowego Systemu e-Faktur (Dz. U. poz. 2481, z późn. zm.).
Składający:	Podatnicy i podmioty nadający lub odbierający osobie fizycznej uprawnienia do korzystania z Krajowego Systemu e-Faktur.
Miejsce składania:	Właściwy naczelnik urzędu skarbowego.

A. MIEJSCE I CEL SKŁADANIA

5. Właściwy naczelnik urzędu skarbowego

6. Cel złożenia formularza (zaznaczyć właściwy kwadrat):
☐ 1. nadanie uprawnień[2)] ☐ 2. odebranie uprawnień ☐ 3. zgłoszenie danych unikalnych identyfikujących kwalifikowany podpis elektroniczny podatnika[3)]

B. DANE PODATNIKA LUB PODMIOTU, KTÓRY NADAJE LUB ODBIERA UPRAWNIENIA DO KORZYSTANIA Z KRAJOWEGO SYSTEMU E-FAKTUR

B.1. DANE IDENTYFIKACYJNE
* – dotyczy podmiotu niebędącego osobą fizyczną ** – dotyczy podmiotu będącego osobą fizyczną

7. Rodzaj podmiotu (zaznaczyć właściwy kwadrat):
☐ 1. podmiot niebędący osobą fizyczną ☐ 2. organ egzekucyjny[4)] ☐ 3. osoba fizyczna

8. Nazwa pełna* / Nazwisko, pierwsze imię**

B.2. ADRES SIEDZIBY* / ZAMIESZKANIA**

9. Kraj	10. Województwo	11. Powiat	
12. Gmina	13. Ulica	14. Nr domu	15. Nr lokalu
16. Miejscowość		17. Kod pocztowy	

B.3. DANE KONTAKTOWE

18. Telefon

19. E-mail[5)]

C. DANE OSOBY UPRAWNIONEJ DO KORZYSTANIA Z KRAJOWEGO SYSTEMU E-FAKTUR

C.1. DANE IDENTYFIKACYJNE

20. Rodzaj identyfikatora podatkowego (zaznaczyć właściwy kwadrat):
☐ 1. NIP ☐ 2. PESEL ☐ 3. Brak identyfikatora[6)]

21. Identyfikator podatkowy NIP / numer PESEL

22. Nazwisko	23. Pierwsze imię	24. Data urodzenia[6)]

25. Rodzaj dokumentu potwierdzającego tożsamość[6)]	26. Numer i seria dokumentu potwierdzającego tożsamość[6)]

27. Kraj wydania dokumentu potwierdzającego tożsamość[6)]

C.2. ADRES ZAMIESZKANIA

28. Kraj	29. Województwo	30. Powiat	
31. Gmina	32. Ulica	33. Nr domu	34. Nr lokalu
35. Miejscowość		36. Kod pocztowy	

POLA JASNE WYPEŁNIA PODMIOT SKŁADAJĄCY ZAWIADOMIENIE, POLA CIEMNE WYPEŁNIA URZĄD. WYPEŁNIĆ DUŻYMI, DRUKOWANYMI LITERAMI, CZARNYM LUB NIEBIESKIM KOLOREM.

C.3. DANE KONTAKTOWE

37. Telefon

38. E-mail[7)]

D. ZGŁOSZENIE DANYCH UNIKALNYCH IDENTYFIKUJĄCYCH KWALIFIKOWANY PODPIS ELEKTRONICZNY NIEZAWIERAJĄCY NUMERU IDENTYFIKACJI PODATKOWEJ (NIP) I NUMERU PESEL

39. Dane unikalne identyfikujące kwalifikowany podpis elektroniczny (SHA-256)[8)]

E. PODPIS PODATNIKA LUB PODMIOTU / OSOBY REPREZENTUJĄCEJ[9)]

1	**40. Nazwisko**	**41. Pierwsze imię**
	42. Stanowisko/funkcja	**43. Podpis**
2	**44. Nazwisko**	**45. Pierwsze imię**
	46. Stanowisko/funkcja	**47. Podpis**
3	**48. Nazwisko**	**49. Pierwsze imię**
	50. Stanowisko/funkcja	**51. Podpis**
4	**52. Nazwisko**	**53. Pierwsze imię**
	54. Stanowisko/funkcja	**55. Podpis**
5	**56. Nazwisko**	**57. Pierwsze imię**
	58. Stanowisko/funkcja	**59. Podpis**
6	**60. Nazwisko**	**61. Pierwsze imię**
	62. Stanowisko/funkcja	**63. Podpis**

Objaśnienia

1) Wypełnia się w przypadku złożenia więcej niż jednego formularza ZAW-FA.

2) Przez nadanie uprawnień należy rozumieć wskazanie osoby uprawnionej do korzystania z Krajowego Systemu e-Faktur. Wskazanie kolejnej osoby uprawnionej w części C jest możliwe po odebraniu uprawnień osobie uprzednio wskazanej. Dalsze uprawnienia nadawane są elektronicznie w Krajowym Systemie e-Faktur.

3) Zaznaczyć w przypadku zgłaszania danych unikalnych identyfikujących kwalifikowany podpis elektroniczny niezawierający numeru identyfikacji podatkowej (NIP) i numeru PESEL podatnika, którym będzie się posługiwał podatnik będący osobą fizyczną wymienioną w części B. W takim przypadku nie wypełnia się części C.

4) W przypadku organu egzekucyjnego zaznacza się również kwadrat „podmiot niebędący osobą fizyczną".

5) Adres e-mail wpisuje się obowiązkowo. Podatnik na podany adres e-mail otrzyma informację o nadaniu lub odebraniu uprawnień do korzystania z Krajowego Systemu e-Faktur.

6) Zaznacza się / wypełnia się w przypadku nierezydenta, który nie posiada identyfikatora podatkowego.

7) Adres e-mail wpisuje się obowiązkowo. Osoba uprawniona na podany adres e-mail otrzyma informację o nadaniu lub odebraniu uprawnień do korzystania z Krajowego Systemu e-Faktur.

8) Wypełnia się w przypadku zgłaszania danych unikalnych identyfikujących kwalifikowany podpis elektroniczny niezawierający numeru identyfikacji podatkowej (NIP) i numeru PESEL, gdy:
   – w polu nr 6 zaznaczono „zgłoszenie danych unikalnych identyfikujących kwalifikowany podpis elektroniczny podatnika"; w takim przypadku nie wypełnia się części C; albo
   – w polu nr 6 zaznaczono „nadanie uprawnień", a osoba uprawniona do korzystania z Krajowego Systemu e-Faktur wymieniona w części C nie posiada numeru identyfikacji podatkowej (NIP) i numeru PESEL oraz posiada wyłącznie kwalifikowany podpis elektroniczny niezawierający numeru identyfikacji podatkowej (NIP) i numeru PESEL, albo
   – w polu nr 6 zaznaczono „nadanie uprawnień", a osoba uprawniona do korzystania z Krajowego Systemu e-Faktur wymieniona w części C posiada wyłącznie kwalifikowany podpis elektroniczny niezawierający numeru identyfikacji podatkowej (NIP) i numeru PESEL.

   W przypadku wypełnienia części D każdą zmianę kwalifikowanego podpisu elektronicznego należy zgłaszać odpowiednio w trybie nadania uprawnień lub zgłoszenia danych unikalnych identyfikujących kwalifikowany podpis elektroniczny podatnika.

9) W przypadku reprezentacji wieloosobowej (powyżej 6 osób) pozostałych uprawnionych do reprezentowania i ustanowienia osoby uprawnionej do korzystania z Krajowego Systemu e-Faktur należy wymienić w dodatkowym formularzu ZAW-FA.

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